Suffolk County Registry of Deeds

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Suffolk County Registry of Deeds
Stephen J. Murphy, Register
24 New Chardon Street
Boston, MA 02114
617-788-8575
Suffolkdeeds.com

[redacted]

UCC FINANCING STATEMENT AMENDMENT

FOLLOW INSTRUCTIONS

A. NAME & PHONE OF CONTACT AT SUBMITTER (optional)
Jannine Perry

B. E-MAIL CONTACT AT SUBMITTER (optional)

C. SEND ACKNOWLEDGMENT TO: (Name and Address)

Wells Fargo Bank, National Association
125 High Street, 15th Floor
CRE Boston (AU #01189) - Loan No. 1020996
Boston, Massachusetts 02110 USA

SEE BELOW FOR SECURED PARTY CONTACT INFORMATION

THE ABOVE SPACE IS FOR FILING OFFICE USE ONLY

1a. INITIAL FINANCING STATEMENT FILE NUMBER
Book 66306, Page 156 09/17/2021

1b. [X] This FINANCING STATEMENT AMENDMENT is to be filed [for record] (or recorded) in the REAL ESTATE RECORDS. Filer: attach Amendment Addendum (Form UCC3Ad) and provide Debtor's name in item 13.

2. [X] TERMINATION: Effectiveness of the Financing Statement identified above is terminated with respect to the security interest(s) of Secured Party(y)(ies) authorizing this Termination Statement

3. [ ] ASSIGNMENT: Provide name of Assignee in item 7a or 7b, and address of Assignee in item 7c and name of Assignor in item 9
For partial assignment, complete items 7 and 9; check ASSIGN Collateral box in Item 8 and describe the affected collateral in item 8

4. [ ] CONTINUATION: Effectiveness of the Financing Statement identified above with respect to the security interest(s) of Secured Party authorizing this Continuation Statement is continued for the additional period provided by applicable law

5. PARTY INFORMATION CHANGE:

Check one of these two boxes:
This Change affects [ ] Debtor or [ ] Secured Party of record

AND Check one of these three boxes to:
[ ] CHANGE name and/or address: Complete item 6a or 6b; and item 7a or 7b and item 7c
[ ] ADD name: Complete item 7a or 7b, and item 7c
[ ] DELETE name: Give record name to be deleted in item 6a or 6b

6. CURRENT RECORD INFORMATION: Complete for Party Information Change - provide only one name (6a or 6b)

6a. ORGANIZATION'S NAME

OR

6b. INDIVIDUAL'S SURNAME	FIRST PERSONAL NAME	ADDITIONAL NAME(S)/INITIAL(S)	SUFFIX

7. CHANGED OR ADDED INFORMATION: Complete for Assignment or Party Information Change - provide only one name (7a or 7b) (use exact, full name; do not omit, modify, or abbreviate any part of the Debtor's name)

7a. ORGANIZATION'S NAME

OR

7b. INDIVIDUAL'S SURNAME

INDIVIDUAL'S FIRST PERSONAL NAME

INDIVIDUAL'S ADDITIONAL NAME(S)/INITIAL(S) | SUFFIX

7c. MAILING ADDRESS	CITY	STATE	POSTAL CODE	COUNTRY

8. COLLATERAL CHANGE: Check only one box:
[ ] ADD collateral [ ] DELETE collateral [ ] RESTATE covered collateral [ ] ASSIGN* collateral

Indicate collateral:

*Check ASSIGN COLLATERAL only if the assignee's power to amend the record is limited to certain collateral and describe the collateral in Section 8

9. NAME OF SECURED PARTY OF RECORD AUTHORIZING THIS AMENDMENT: Provide only one name (9a or 9b) (name of Assignor, if this is an Assignment)
If this is an Amendment authorized by a DEBTOR, check here [ ] and provide name of authorizing Debtor

9a. ORGANIZATION'S NAME
WELLS FARGO BANK, NATIONAL ASSOCIATION , as Administrative Agent

OR

9b. INDIVIDUAL'S SURNAME	FIRST PERSONAL NAME	ADDITIONAL NAME(S)/INITIAL(S)	SUFFIX

10. OPTIONAL FILER REFERENCE DATA:
Filed with: MA - Suffolk County; Debtor: SEAPORT L-5 TITLE HOLDER LLC - CM # 63703.00316

F#1184728
A#1626220

FILING OFFICE COPY — UCC FINANCING STATEMENT AMENDMENT (Form UCC3) (Rev. 07/01/23)

UCC FINANCING STATEMENT AMENDMENT ADDENDUM

FOLLOW INSTRUCTIONS

11. INITIAL FINANCING STATEMENT FILE NUMBER: Same as item 1a on Amendment form
Book 66306, Page 156 09/17/2021

12. NAME OF PARTY AUTHORIZING THIS AMENDMENT: Same as item 9 on Amendment form

12a. ORGANIZATION'S NAME
WELLS FARGO BANK, NATIONAL ASSOCIATION , as Administrative Agent

OR

12b. INDIVIDUAL'S SURNAME

FIRST PERSONAL NAME

ADDITIONAL NAME(S)/INITIAL(S) | SUFFIX

THE ABOVE SPACE IS FOR FILING OFFICE USE ONLY

13. Name of DEBTOR on related financing statement (Name of a current Debtor of record required for indexing purposes only in some filing offices - see Instruction item 13): Provide only one Debtor name (13a or 13b) (use exact, full name; do not omit, modify, or abbreviate any part of the Debtor's name); see Instructions if name does not fit

13a. ORGANIZATION'S NAME
Seaport L-5 Title Holder LLC

OR

13b. INDIVIDUAL'S SURNAME | FIRST PERSONAL NAME | ADDITIONAL NAME(S)/INITIAL(S) | SUFFIX

14. ADDITIONAL SPACE FOR (CHECK ONE BOX): ☐ ITEM 8 (Collateral) OR ☐ OTHER INFORMATION (Please Describe)

15. This FINANCING STATEMENT AMENDMENT:
☐ covers timber to be cut ☐ covers as-extracted collateral ☒ is filed as a fixture filing

16. Name and address of a RECORD OWNER of real estate described in item 17
(if Debtor does not have a record interest):

17. Description of real estate:
See Exhibit A attached hereto and made a part hereof.

18. MISCELLANEOUS:

EXHIBIT A

LEGAL DESCRIPTION

CONSOLIDATED PARCEL L5

A CERTAIN PARCEL OF LAND LOCATED ON BOSTON WHARF ROAD AND CONGRESS STREET IN BOSTON (SEAPORT DISTRICT), SUFFOLK COUNTY, MASSACHUSETTS, SHOWN AS CONSOLIDATED PARCEL L5 ON PLAN ENTITLED "PARCEL L5 CONSOLIDATION PLAN, SEAPORT BLOCK L, CONGRESS STREET, BOSTON, MA" BY NITSCH ENGINEERING, DATED OCTOBER 24, 2019 AND RECORDED WITH SUFFOLK COUNTY REGISTRY OF DEEDS IN PLAN BOOK 2019, PAGE 610, AND BEING BOUNDED AND DESCRIBED AS FOLLOWS:

BEGINNING AT A STONE BOUND WITH PLUG IN LEAD ON THE EASTERLY SIDELINE OF BOSTON WHARF ROAD AT THE INTERSECTION OF SAID ROAD WITH THE NORTHERLY SIDELINE OF CONGRESS STREET SAID POINT BEING A POINT OF CURVATURE, HAVING A MASS. STATE PLANE COORDINATE OF N:2,952,790.0673, E:778,640.5881;

THENCE N25°37'28"E, A DISTANCE OF 129.95 FEET TO A STONE BOUND WITH PLUG IN LEAD;

THENCE N29°27'24"E, A DISTANCE OF 181.82 FEET TO A POINT, HAVING A MASS. STATE PLANE COORDINATE OF N:2,953,065.5571, E:778,786.2031;

THENCE S60°29'47"E, A DISTANCE OF 166.03 FEET TO A POINT;

THENCE S29°27'36"W, A DISTANCE OF 135.53 FEET TO A POINT, HAVING A MASS. STATE PLANE COORDINATE OF N:2,952,865.7832, E:778,864.0565;

THENCE S60°32'24"E, A DISTANCE OF 92.32 FEET TO A POINT;

THENCE S29°27'12"W, A DISTANCE OF 155.68 FEET TO A POINT ON THE NORTHERLY SIDELINE OF CONGRESS STREET SAID POINT BEING A POINT ON CURVATURE, HAVING A MASS. STATE PLANE COORDINATE OF N:2,952,684.8213, E:778,867.8943;

THENCE ALONG A CURVE TO THE RIGHT, HAVING A RADIUS OF 988.00 FEET, AN ARC LENGTH OF 212.40 FEET, A CENTRAL ANGLE OF 12°19'03" AND A CHORD BEARING OF N72°46'44"W, A CHORD DISTANCE OF 211.99 FEET TO A STONE BOUND WITH PLUG IN LEAD SAID POINT BEING A POINT OF NON-TANGENCY;

THENCE N74°14'37"W, A DISTANCE OF 6.75 FEET TO A STONE BOUND WITH PLUG IN LEAD SAID POINT BEING A POINT ON CURVATURE;

THENCE ALONG A CURVE TO THE RIGHT, HAVING A RADIUS OF 31.61 FEET, AN ARC LENGTH OF 49.49 FEET, A CENTRAL ANGLE OF 89°42'36" AND A CHORD BEARING OF N24°15'48"W, A CHORD DISTANCE OF 44.59 FEET TO THE POINT OF BEGINNING.

THE ABOVE-DESCRIBED CONSOLIDATED PARCEL L5 CONTAINS 69,588 SQUARE FEET OF LAND, MORE OR LESS.

Together with non-exclusive appurtenant easements created in Declaration of Covenants, Restrictions, Development Standards and Easements, dated as of December 22, 2011, recorded in Book 48846, Page 1; as affected by Agreement of Declarant dated December 27, 2011 and recorded in Book 48869, Page 252; as further affected by First Amendment to Agreement of Declarant dated January 16, 2013 and recorded in Book 52661, Page 283; as further affected by Assignment and Assumption of Declarant's Rights dated October 23, 2015 and recorded in Book 55221, Page 267; as further affected by First Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements dated October 23, 2015 and recorded in Book 55221, Page 229; as further affected by Second Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements, dated July 7, 2017, and recorded in Book 58200, Page 221; and as further affected by Third Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements dated February 16, 2018 and recorded in Book 59200, Page 294.; and as affected by the Fourth Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements dated January 1, 2020 and recorded in Book 62365, Page 19.

Together with non-exclusive appurtenant rights and easements contained in Garage Reciprocal Easement Agreement, Seaport Square Blocks L3 through L6, by and among Seaport L-4 Title Holder LLC, Seaport L-5 Title Holder LLC, and Seaport L Title Holder LLC, dated as of June 7, 2019 and recorded with said Deeds on June 10, 2019 in Book 61243, Page 130.

Together with the non-exclusive, temporary construction easement and non-exclusive temporary crane swing easement as set forth in the Grant of Construction Easements Agreement by and between Seaport Square Development Company LLC, as grantor, and Seaport L-4 Title Holder LLC, Seaport L Title Holder LLC, and Seaport L-5 Title Holder LLC, as grantees, dated June 7, 2019 and recorded in Book 61243, Page 200.

Together with the benefit of a non-exclusive temporary slab easement as set forth in the Grant of Slab Easement by and between Seaport L Title Holder LLC and Seaport L-5 Title Holder LLC dated and recorded on or about the date hereof.

Together with the benefit of a Canopy Easement as set forth in the Grant of Easement by and between Seaport L Title Holder LLC and Seaport L-5 Title Holder LLC dated and recorded on or about the date hereof.

Together with the benefit of an Architectural Elements Easement as set forth in the Grant of Easement by and between Seaport L-4 Title Holder LLC and Seaport L-5 Title Holder LLC dated and recorded on or about the date hereof.

Together with the benefit of a Stormwater Easement as set forth in the Grant of Stormwater Easement by and between Seaport L-4 Title Holder LLC and Seaport L-5 Title Holder LLC dated and recorded on or about the date hereof.

NOTE:

Property address: 1 - 27 Boston Wharf Road, f/k/a 0 Boston Wharf Road, Boston, MA
City of Boston Tax Identification No. for Consolidated Parcel L5: 06-2643-070